

26STCV16707 26STCV16707

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MOTION TO SEAL

The Court tenders the following tentative ruling in the matter Mohammed Shaikh v. Quinn Emanuel Urquhart & Sullivan, LLP, et al., Los Angeles County Superior Court case number 26STCV16707, set for hearing on July 9, 2026. Mohammed Shaikh (Plaintiff) moves for an order sealing the following documents filed in this case: (1) Plaintiff's motion for a preliminary injunction; (2) Plaintiff's declaration in support of the preliminary injunction; (3) the Declaration of Michael Todisco in support; and (4) the proposed order granting the preliminary injunction. The motion is unopposed. The motion is granted.

A.

Legal Standard

Pursuant to

California Rule of Court, rule 2.550(d), the court may order that a record be sealed if it finds facts that establish the following: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.

A "reasoned decision about sealing

or unsealing records cannot be made without . . . (1) identifying the specific information claimed to be entitled to such treatment; (2) identifying the nature of the harm threatened by disclosure; and (3) identifying and accounting for countervailing considerations. The burden of presenting information

sufficient to accomplish the first two steps is logically placed on the party seeking the sealing of the documents, who is presumptively in the best position to know what disclosures will harm and how." (H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.) The burden of showing there are less restrictive means of achieving the overriding interest lies with one who is seeking disclosure of the allegedly confidential information. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1224.)

B.

Discussion

Plaintiff has met all of the requirements for sealing under rule 2.550(d). First, Plaintiff demonstrates that there is an overriding interest in sealing the specified documents because they include confidential, attorney-client communications shared with prior counsel which are privileged under Evidence Code section 954. Second, he notes that this interest supports sealing the records because the purpose of the privilege is to protect the attorney-client relationship. Third, Plaintiff argues that he will suffer prejudice if the communications are disclosed to his adversaries in an ongoing arbitration proceeding. Fourth, Plaintiff has shown that the proposed sealing is narrowly tailored because he has only redacted essential information. Finally, he asserts that no less restrictive means is available to protect his interest. No defendant has filed an opposition. Accordingly, Plaintiff's motion is granted.

Conclusion:

The Court grants
the motion.